

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yanjiao Chen	Team: Team # 3	CCRB Case #: 201307940	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 06/01/2013 4:00 AM	Location of Incident: Father Capodanno Boulevard and Sand Lane; Sand Lane and Dodi Place; 122nd Precinct stationhouse	18 Mo. SOL 12/1/2014	Precinct: 122
Date/Time CV Reported Tue, 08/20/2013 2:04 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Tue, 08/27/2013 2:04 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sherwin Ogbewe	11368	942287	122 PCT
2. SGT William Gavigan	02246	943286	122 PCT
3. Officers			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Giovanni Cascio	25697	915424	PBSI SU
2. POM Erik Miller	05745	942210	122 PCT
3. POM Marc Stoll	18540	943847	122 PCT
4. SGT Michael Lazzara	00473	936923	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT William Gavigan	Discourtesy: At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan spoke rudely to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Sherwin Ogbewe	Discourtesy: At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe spoke rudely to § 87(2)(b) and § 87(2)(b)	B . Unfounded
C . POM Sherwin Ogbewe	Force: At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe pointed his gun at § 87(2)(b) and § 87(2)(b)	C . Unfounded
D . SGT William Gavigan	Abuse: At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan supervised the search of § 87(2)(b) vehicle.	D . Exonerated
E . POM Sherwin Ogbewe	Abuse: At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe searched § 87(2)(b)	E . Unsubstantiated
F . SGT William Gavigan	Force: At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan used physical force against § 87(2)(b)	F . Unfounded
G . SGT William Gavigan	Abuse: At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan searched § 87(2)(b) and § 87(2)(b)	G . Unfounded

Officer(s)	Allegation	Investigator Recommendation
H . SGT William Gavigan	Abuse: At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan supervised the frisk of § 87(2)(b)	H . Exonerated
I . SGT William Gavigan	Abuse: At Sand Lane and Dodi Place in Staten Island, Sgt. William Gavigan supervised the search of § 87(2)(b)	I . Substantiated
J . POM Sherwin Ogbewe	Abuse: At Sand Lane and Dodi Place in Staten Island, PO Ogbewe searched § 87(2)(b)	J . Substantiated
K . Officers	Abuse: At Olympia Boulevard and Sand Lane in Staten Island, officers stopped § 87(2)(b) and § 87(2)(b)	K . Exonerated
L . Officers	Abuse: At Olympia Boulevard and Sand Lane in Staten Island, officers frisked § 87(2)(b) and § 87(2)(b)	L . Exonerated
M . Officers	Abuse: At Olympia Boulevard and Sand Lane in Staten Island, officers searched § 87(2)(b) and § 87(2)(b)	M . Exonerated
N . Officers	Discourtesy: Inside the 122nd Precinct stationhouse, officers spoke rudely to § 87(2)(b)	N . Officer(s) Unidentified

Case Summary

On August 20, 2013, nearly three months after the incident date, § 87(2)(b) filed this complaint with the CCRB by mail on the behalf of himself, § 87(2)(b) and § 87(2)(b).

On June 1, 2013, at around 4 a.m., in a parking lot at Father Capodanno Boulevard and Sand Lane in Staten Island, § 87(2)(b) and § 87(2)(b) were standing outside of their blue BMW when Sgt. William Gavin and PO Sherwin Ogbewe of the 122nd Precinct approached them. The following allegations resulted from the incident.

Allegation A: Force – At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe pointed his gun at § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation A** be closed as *unfounded*.

Allegation B: Discourtesy – At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation B** be closed as *unsubstantiated*.

Allegation C: Discourtesy – At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation C** be closed as *unfounded*.

Allegation D: Abuse of Authority – At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan supervised the search of § 87(2)(b) vehicle.

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation D** be closed as *exonerated*.

Allegation E: Abuse of Authority – At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation E** be closed as *unsubstantiated*.

Allegation F: Force – At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan used physical force against § 87(2)(b)

Allegation G: At Father Capodanno Boulevard and Sand Lane in Staten Island, Abuse of Authority – Sgt. William Gavigan searched § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). It is recommended that **Allegations F and G** be closed as *unfounded*.

Allegation H: Abuse of Authority – At Sand Lane and Dodi Place in Staten Island, Sgt. William Gavigan supervised the frisk of § 87(2)(b)

§ 87(2)(g) Therefore, it is recommended that **Allegation H** be closed as *exonerated*.

Allegation I: Abuse of Authority – At Sand Lane and Dodi Place in Staten Island, Sgt. William Gavigan supervised the search of § 87(2)(b)

Allegation J: Abuse of Authority – At Sand Lane and Dodi Place in Staten Island, PO Ogbewe searched § 87(2)(b)

§ 87(2)(g). It is therefore recommended that **Allegation I and J** be closed as *substantiated*.

Allegation K: Abuse of Authority – At Olympia Boulevard and Sand Lane in Staten Island, officers stopped § 87(2)(b) and § 87(2)(b)

Allegation L: Abuse of Authority – At Olympia Boulevard and Sand Lane in Staten Island, officers frisked § 87(2)(b) and § 87(2)(b)

Allegation M: Abuse of Authority – At Olympia Boulevard and Sand Lane in Staten Island, officers searched § 87(2)(b) and § 87(2)(b)

§ 87(2)(g). Consequently it is recommended that **Allegations K, L, and M** be closed as *exonerated*.

Allegation N: Abuse of Authority – Inside the 122nd Precinct Stationhouse, officers spoke rudely to § 87(2)(b)

§ 87(2)(g). Therefore, it is recommended that **Allegation N** be closed as *officer(s) unidentified*.

Mediation was not presented due to § 87(2)(b) and § 87(2)(b)'s arrests.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man, who § 87(2)(b) has brown hair and brown eyes.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed on September 9, 2013, at the § 87(2)(b) (enc. C-1 – C-5). § 87(2)(g)

On June 1, 2013, at around 4 a.m., § 87(2)(b) was at Father Capodanno Boulevard and Sand Lane in Staten Island with § 87(2)(b) and § 87(2)(b) girlfriend § 87(2)(b) § 87(2)(b) was driving his blue BMW. They were about to go to the beach, and were parked in the parking lot of the beach. § 87(2)(b) had just finished wiping off something he had spilled in the car and thrown the dirty rag into the trunk, when a marked patrol vehicle approached them very quickly, and stopped suddenly next to them. Sgt. Gavigan and PO Ogbewe exited the patrol vehicle and asked what § 87(2)(b) had just thrown into the trunk. They also stated that § 87(2)(b) and § 87(2)(b) were trespassing. § 87(2)(b) informed both officers that he had just spilled something and was wiping it up.

Sgt. Gavigan asked § 87(2)(b) to search the car, but § 87(2)(b) did not remember hearing § 87(2)(b) responding to this request. Sgt. Gavigan and PO Ogbewele first searched the trunk of the vehicle, after which PO Ogbewele remained standing at the rear of the vehicle with § 87(2)(b) as Sgt. Gavigan went to the front passenger side. Sgt. Gavigan did not search very much before § 87(2)(b) stated in a loud tone of voice, as she was upset, that the officers seemed to be racially profiling them as there were other Caucasian civilians at the beach. Sgt. Gavigan looked to where § 87(2)(b) was pointing, stopped searching, and said “Alright, alright, calm down.”

It was during this time that PO Ogbewele frisked and searched § 87(2)(b)'s person, feeling around his waistband and entering his front pants pockets. PO Ogbewele then asked § 87(2)(b) for his identification, which the latter retrieved from his wallet in his back pants pocket. § 87(2)(b) and § 87(2)(b) were not searched. PO Ogbewele handed § 87(2)(b)'s identification to Sgt. Gavigan after the latter had stopped searching the car, and Sgt. Gavigan went to the patrol vehicle to run the license. After the check, Sgt. Gavigan handed back the licenses and both officers sped off in their patrol vehicle, seemingly to pursue someone else, although § 87(2)(b) did not see who. This beginning interaction lasted about ten minutes.

§ 87(2)(b) then drove § 87(2)(b) and § 87(2)(b) about two miles away. § 87(2)(b) and § 87(2)(b) decided to stop at a store before heading back to the beach, while § 87(2)(b) slept inside the car, sitting behind the driver's seat. After an unknown period of time, possibly forty minutes, Sgt. Gavigan and PO Ogbewele woke § 87(2)(b) up by tapping on the car window. Sgt. Gavigan and PO Ogbewele asked § 87(2)(b) to step outside about three times before § 87(2)(b) finally complied. Once outside, § 87(2)(b) was turned around, pushed against the car, and searched. Sgt. Gavigan and PO Ogbewele both felt § 87(2)(b)'s waistband and searched inside his pockets, retrieving a key to another vehicle, a phone, a wallet, and a few dollars. They did not search or feel any other part of § 87(2)(b)'s body. § 87(2)(b) was on that day wearing a black v-neck t-shirt, black denim shorts, and sneakers. § 87(2)(b) had been wearing short shorts, a tank top, and sneakers, and § 87(2)(b) had been wearing an orange t-shirt and blue shorts.

Sgt. Gavigan and PO Ogbewele arrested § 87(2)(b) and brought him to the 122nd Precinct stationhouse. § 87(2)(b) was also at the stationhouse and told § 87(2)(b) that while he and § 87(2)(b) had been going to the store, they had seen helicopters, and then the police came up to them and arrested them. § 87(2)(b) was told that he was being charged with trespassing, however he later learned from his lawyers that the officers were also charging him with criminal possession of a gun that was found in a completely unrelated vehicle. Both § 87(2)(b) and § 87(2)(b) were released, the latter with only a desk appearance ticket. § 87(2)(b) never received a property voucher, and emphasized that the information on his arrest report is false.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man who § 87(2)(b) has black hair and brown eyes.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the § 87(2)(b) on Riker's Island on October 21, 2013 (enc. E-1 – E-5). § 87(2)(g)

On June 1, 2013, at around 4 a.m., § 87(2)(b) was in the passenger seat of his BMW, while § 87(2)(b) was driving and § 87(2)(b) was sitting in the backseat. There were some CDs, paperwork, and a workout gym bag inside the car. There were no weapons or alcohol. As § 87(2)(b) pulled up into

the parking lot of South Beach in Staten Island at the intersection of Father Capodanno Boulevard and Sand Lane, she spilled a cup of wine cooler onto the back seat. § 87(2)(b) explained that wine cooler is just a regular drink, with less than one percent alcohol content. He was trying to clean up the spill and was in the process of getting out of the car, when Sgt. Gavigan and PO Ogbewe pulled up right next to the passenger side door in their patrol vehicle.

When the two officers exited their police vehicle, § 87(2)(b) and § 87(2)(b) had also exited the BMW, as they were planning on going down to the beach. The two officers stated “Stop right there,” and told the three civilians that they were not supposed to be there. Sgt. Gavigan approached the passenger side of the BMW and PO Ogbewe stood by the rear. PO Ogbewe was holding his gun with one hand, pointing it at the BMW, and was waving with his free hand to indicate to all three civilians to also come to the rear of the vehicle. § 87(2)(b) responded by inquiring why it was they were being stopped as there were thirty other civilians on the beach, but all of whom were Caucasian. § 87(2)(b) was also protesting, and commenting on how she, § 87(2)(b) and § 87(2)(b) were the only minorities on the beach, and were the only ones being stopped. Sgt. Gavigan responded by saying “Shut the fuck up and do what you’re told. I can do whatever the fuck I want.” PO Ogbewe also cursed and said “just do whatever the fuck [Sgt. Gavigan] wants.” § 87(2)(b) was calm and not saying much.

Both officers’ demeanors were aggressive and forceful, and their tones of voices loud. Sgt. Gavigan seemed to become irritated by the questions, so he pushed § 87(2)(b) against the car, slammed his face against the car, and said “I just wanna search you.” § 87(2)(b) protested again saying “why are you doing this?” Sgt. Gavigan stated “shut up bitch,” after which § 87(2)(b) became agitated and raised her voice. § 87(2)(b) who was subdued on the BMW at this time, did not raise his voice. None of the civilians cursed at the officers. Sgt. Gavigan did not pat § 87(2)(b) down, but immediately reached into his front and back pants pockets. § 87(2)(b) had a couple hundred dollars in cash, a wallet in his front right pocket and an iPhone in his left front pocket. Sgt. Gavigan also took off § 87(2)(b)’s shoes and felt around the socks, but ultimately did not find anything.

Sgt. Gavigan then proceeded to search § 87(2)(b). He un-tucked § 87(2)(b)’s shirt from her pants, told her to shake out her bra, and patted her down from the shoulders to her feet. Sgt. Gavigan had instructed § 87(2)(b) to take everything out of her pockets, which she complied with. However, § 87(2)(b) then immediately put everything that she had back into her pockets, and Sgt. Gavigan stated “No, I said take everything out,” reached into § 87(2)(b)’s pockets, and took out all of the items again. PO Ogbewe searched § 87(2)(b) but not aggressively, and took his identification out of his pocket. Both § 87(2)(b) and § 87(2)(b) were facing the BMW with their hands on top of the hood of the vehicle.

After searching § 87(2)(b) and § 87(2)(b) Sgt. Gavigan ordered PO Ogbewe to search the BMW. The officers never asked permission to search the vehicle, and § 87(2)(b) never gave his consent. PO Ogbewe looked through the entire vehicle. He went into the trunk, the back and front seats, and into the glove compartment. The compartment was locked, so § 87(2)(b) had to unlock it for PO Ogbewe. All of the paperwork for the vehicle was legitimate, and § 87(2)(b) had a valid driver’s license. Sgt. Gavigan did a brief search of the BMW with his flashlight after PO Ogbewe had finished, feeling underneath each seat. PO Ogbewe then assumed a position near the rear of the vehicle, pointing his gun at § 87(2)(b) and § 87(2)(b) who were standing next to each other. Sgt. Gavigan had gone back inside the police vehicle, but left the door open, so § 87(2)(b) could hear Sgt. Gavigan go over the radio and perform checks on § 87(2)(b) and § 87(2)(b)’s identifications.

After not finding any active warrants, Sgt. Gavigan asked if anyone had been drinking. § 87(2)(b) confessed that she had consumed some wine cooler. Sgt. Gavigan conducted a few sobriety tests that § 87(2)(b) passed, and commanded § 87(2)(b) and § 87(2)(b) to leave and said “You wanna go to jail or stay on my side of town?” § 87(2)(b) and § 87(2)(b) got back into the BMW and drove off. This interaction lasted for about fifteen minutes.

After having driven for only two minutes, § 87(2)(b) parked the car again as she wanted to go into a store to get some cigarettes. She and § 87(2)(b) went to the store, leaving § 87(2)(b) to sleep in

the back seat. When they exited the store however, they saw Sgt. Gavigan and PO Ogbwele pull up to the BMW again. A helicopter was in the air beaming a light onto the BMW. There were also a number of other police vehicles at the scene. One of the vehicles with two unidentified officers, who will heretofore be referred to as PO3 and PO4, stopped § 87(2)(b) and § 87(2)(b) § 87(2)(b) asked “what is it this time?” and PO3 and PO4 responded that § 87(2)(b) and § 87(2)(b) had disobeyed Sgt. Gavigan’s instructions to leave the beach. Plus, § 87(2)(b) apparently fit the description of a perpetrator who had committed robberies on the beach that night. The two officers described the perpetrator as a black man wearing an orange shirt. § 87(2)(b) had been wearing an orange polo shirt, light blue True Religion jeans, and white Nike sneakers that day.

PO3 and PO4 stated that they needed to bring § 87(2)(b) and § 87(2)(b) down to the stationhouse as part of the investigation. PO3 frisked, searched, and handcuffed § 87(2)(b) while PO4 searched and handcuffed § 87(2)(b). The two officers patted § 87(2)(b) and § 87(2)(b) from the shoulders to their feet, although no shoes were taken off, and they reached into the civilians’ pockets as well. Nothing was recovered from the searches. PO3 and PO4 then placed § 87(2)(b) and § 87(2)(b) into the back of their police vehicle, from which § 87(2)(b) observed Sgt. Gavigan and PO Ogbwele pulling § 87(2)(b) out of the backseat of the BMW. § 87(2)(b) stated that he saw Sgt. Gavigan and PO Ogbwele throw § 87(2)(b) face down, onto the floor, and then kneel down to place handcuffs on him. § 87(2)(b) could not see where Sgt. Gavigan and PO Ogbwele’s knees were as he was being driven away at that point. Although § 87(2)(b) claimed that there was also another set of officers searching the BMW, the investigation determined that there was not.

At the 122nd Precinct stationhouse, § 87(2)(b) was released after being held for twenty hours. She was given the BMW and § 87(2)(b)’s property. § 87(2)(b) had also been brought to the stationhouse, and conferred to § 87(2)(b) that he was being charged for a weapon that was found in another vehicle. § 87(2)(b) was arrested for trespass, but he was ultimately not summonsed or charged for it.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. She is a Hispanic woman, who § 87(2)(b) has brown hair and brown eyes.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at § 87(2)(b) on Rikers Island on October 2, 2013 (enc. D-1 – D-5). § 87(2)(g)

On June 1, 2013, at around 4 a.m., in the vicinity of Father Capodanno Boulevard, § 87(2)(b) pulled up in the parking lot of a beach. As soon as she exited the vehicle, Sgt. Gavigan and PO Ogbwele drove up in their patrol car, flashing their lights at § 87(2)(b). Both officers exited their vehicle, and Sgt. Gavigan says “You’re not supposed to be on the beach.” § 87(2)(b) responded to the officers “Everybody else is on the beach, why aren’t we allowed to be here.” There were more than fifty people on the beach at that time. § 87(2)(b) was by the driver’s side, § 87(2)(b) was standing on the passenger side, and § 87(2)(b) was standing at the back of the vehicle.

Sgt. Gavigan then requested to search the vehicle, saying that § 87(2)(b) and § 87(2)(b) had put something into the trunk. § 87(2)(b) granted permission saying “Go ahead. There’s just a box of wine in the trunk.” § 87(2)(b) had denied the officers permission, commenting on how there are a lot of other white people on the beach, and that they were not being searched. Sgt. Gavigan had also said during this interaction “open this fucking car or I’m gonna call other officers.” PO Ogbwele was also

being nasty, however did not use any profanity. When the officers approached § 87(2)(b) she had at first been nice, but in response to the both officers' nastiness, she also raised her voice. Around this time, Sgt. Gavigan and PO Ogbwele checked § 87(2)(b) and § 87(2)(b)'s identifications, which were voluntarily provided to the officers. § 87(2)(b) was standing by the driver's side, § 87(2)(b) was on the passenger side, and § 87(2)(b) was positioned at the back of the car.

Only Sgt. Gavigan searched the car while PO Ogbwele watched. He looked through the front and back of the car, opening the trunk and glove compartments. Sgt. Gavigan found the box of wine in the trunk and tossed it on the floor outside. He also knocked over a cup of wine that § 87(2)(b) had inside the car during the search. There was no firearm inside the car. Around this time, Sgt. Gavigan and PO Ogbwele checked § 87(2)(b) and § 87(2)(b)'s identifications. § 87(2)(g) Before Sgt. Gavigan and PO Ogbwele drove off in their police vehicle, they told § 87(2)(b) and § 87(2)(b) to leave. § 87(2)(b) and § 87(2)(b) complied.

A few minutes later, § 87(2)(b) parked the BMW somewhere and was about to head into a liquor store with § 87(2)(b) to buy cigarettes, leaving § 87(2)(b) inside the car, when PO3 and PO4 stopped them. There were a lot of police cars on the street and a helicopter in the air too. PO3 and PO4 told § 87(2)(b) and § 87(2)(b) that a black man and a Hispanic woman had robbed four to five white couples on the beach, and that they needed to bring them to the stationhouse as a part of the investigation. § 87(2)(b) was wearing a belly shirt and beige shorts on the day of the incident.

When § 87(2)(b) and § 87(2)(b) got to the stationhouse, § 87(2)(b) was also there. The three civilians never conferred to each other what had happened, and § 87(2)(b) did not know what happened to § 87(2)(b) or what he was arrested for. At the stationhouse, § 87(2)(b) was interrogated by four detectives in casual plainclothes and held in the interrogation room for hours. All four detectives were cursing at her, but § 87(2)(b) specified that PO5 called her a bitch a number of times during interrogation. She was eventually let go with a ticket for trespassing, but § 87(2)(b) and § 87(2)(b) were held at the stationhouse for further investigation. The BMW was searched at the stationhouse.

NYPD Statements:

Subject Officer: PO SHERWIN OGBWELE

- PO Ogbwele was § 87(2)(b) old at the time of the incident. He is a black man, § 87(2)(b) has brown eyes and brown hair.
- On June 1, 2013, PO Ogbwele worked between the hours of 11:15 p.m. on May 31, 2013, to 7:50 a.m. on June 1, 2013. He was assigned as the Sergeant's Operator for Sgt. William Gavigan, was on restricted duty, in uniform, and in a marked patrol vehicle.

Command Log

§ 87(2)(b) and § 87(2)(b) were logged in at 5:05 a.m. as arrests for § 87(2)(b). § 87(2)(b) name was addressed as "§ 87(2)(b)". § 87(2)(b) was released with a "C" summons # § 87(2)(b) at 12:30 p.m. on June 1, 2013.

§ 87(2)(b) was logged in at 6:30 a.m. as an arrest for § 87(2)(a) 160.50 (enc. P-1 – P-2).

Arrest Report

§ 87(2)(a) 160.50

Memo Books

PO Ogbewe's memo book entries pertaining to this incident (enc. G-1 – G-3) state verbatim that “at 3:35 a.m., 2 male and 1 female of stop at parking lot at Father Capadanno Blvd and Sand Lane for trespassing in parking lot which states parking lot closes from [blank] to [blank]. § 87(2)(b) § 87(2)(b) § 87(2)(b) male, black, § 87(2)(b) Olympia Blvd and Sand Lane § 87(2)(b) male, black, § 87(2)(b) § 87(2)(b) § 87(2)(b); female, Hispanic (black), § 87(2)(b) Olympia and Sand Lane § 87(2)(b). At 5:06 a.m., three under at location of Father Capadanno Blvd and Sand Lane. 1 Quincy Ave.”

CCRB Statement

PO Ogbewe was interviewed at the CCRB on January 16, 2014 (enc. G-4 – G-5).

On June 1, 2013, at around 4 a.m., PO Ogbewe and Sgt. Gavigan observed four individuals standing next to two vehicles, a black Honda Civic and a blue BMW, inside a parking lot at Father Capodanno Boulevard and Sand Lane in Staten Island. The area is known for robberies, and the parking lot is closed at 1 a.m. These four individuals were considered trespassing, so PO Ogbewe and Sgt. Gavigan approached them. PO Ogbewe did not see any of the four individuals exit a vehicle, rather all of them were already standing outside. As PO Ogbewe and Sgt. Gavigan drove up, one of the individuals, a black man wearing light colored clothing, who will heretofore be referred to as CIV1, left the location on foot. The three remaining individuals, identified via the investigation as § 87(2)(b) and § 87(2)(b) were standing by the rear end of the BMW. There were a few other cars in the parking lot, but they did not have anyone inside. There were no other civilians in the parking lot or on the beach.

PO Ogbewe and Sgt. Gavigan exited their patrol car and as they were walking towards the civilians, Sgt. Gavigan spotted a firearm underneath the passenger seat of the Honda Civic. Sgt. Gavigan had been looking through the windows of the Civic and therefore noticed it, while PO Ogbewe had just been walking towards the civilian, so did not see the firearm. Sgt. Gavigan only informed PO Ogbewe about this later on. Upon arriving at the BMW, PO Ogbewe smelled a strong odor of marijuana, and § 87(2)(b) had apologized for it, stating that he had just smoked some. However, because neither PO Ogbewe nor Sgt. Gavigan saw any marijuana in plain view, they did not investigate it. The verbal interaction between the officers and the civilians was calm, with neither party raising their voices or using profanity. § 87(2)(b) and § 87(2)(b) all complied in giving their identification to Sgt. Gavigan, who took it back to the patrol car to run warrant checks. It was while Sgt. Gavigan was inside the patrol vehicle, and while PO Ogbewe was standing outside watching the civilians, that Sgt. Gavigan signaled to PO Ogbewe that there was a firearm inside the Honda Civic. When asked during his interview what kind of signal Sgt. Gavigan provided, PO Ogbewe stated that Sgt. Gavigan just gave him a look that both of them understand to mean “firearm.” The warrant checks yielded negative results, and because Sgt. Gavigan did not want to inform § 87(2)(b) and § 87(2)(b) that he was aware of a firearm, he and PO Ogbewe did not arrest or summons anyone, and let them leave the parking lot. At no point during this first part of the incident did either PO Ogbewe or Sgt. Gavigan draw their firearm, search the BMW, use profanity, or frisk or search any civilian.

After § 87(2)(b) and § 87(2)(b) had driven off in the BMW, PO Ogbewe and Sgt. Gavigan drove to the end of the parking lot, about a quarter of a mile away from the Honda Civic, to wait for someone to come back. While waiting for someone to show up, PO Ogbewe observed the BMW circle around Father Capadanno Boulevard three times looking for CIV1. CIV1 had actually

waved at the BMW , but did not get its attention so it kept driving. PO Ogbewe recognized CIV1 because he was the same black man in light colored clothing from the beginning of the incident.

After some time, PO Ogbewe and Sgt. Gavigan observed CIV1 approach the Honda Civic and open the front passenger door. As they were approaching the Honda Civic in their patrol car, CIV1 fled on foot. PO Ogbewe exited the vehicle and pursued him as Sgt. Gavigan drove around to try and cut him off. Only thirty seconds later, PO Ogbewe lost the individual as he had run into a dark alley. At that point, PO Ogbewe put a description of this individual over the radio, stating that he was a black man wearing light-colored clothing. A few minutes later, back up arrived, as did aviation and canine units. Ten minutes after the original radio transmission, PO Ogbewe then put a description of § 87(2)(b) and § 87(2)(b) and the blue BMW over the radio as they were related to the investigation regarding the firearm.

Two unidentified officers observed § 87(2)(b) and § 87(2)(b) exit the BMW at Olympia Boulevard and Sand Lane and transmitted this information over the radio. PO Ogbewe and Sgt. Gavigan went to that location and saw § 87(2)(b) sleeping inside the BMW . They tapped on the window, woke up a startled § 87(2)(b) and asked him to step out of the vehicle. PO Ogbewe recognized this BMW as being the same one from the beginning of the incident due to the make and model of the car, and the license plate. When § 87(2)(b) who was fully compliant, stepped out of the vehicle, PO Ogbewe noticed a large bulge in § 87(2)(b)'s left pants pocket. PO Ogbewe explained that he suspected the bulge to be a weapon as something that big inside a pocket could only be a weapon. He was unable to describe the bulge any more than being "big." He frisked the pocket, but did not frisk any other part of § 87(2)(b). PO Ogbewe was unable to describe what exactly it was that he felt, stating that it was simply a hard object. Sgt. Gavigan then asked § 87(2)(b) to remove the contents of his pocket out. § 87(2)(b) took out his wallet, keys, and some other items that PO Ogbewe could not recall, which had constituted the bulge. The keys were Honda keys, evidenced by the insignia. When asked where he had gotten the keys, § 87(2)(b) replied that an unidentified friend had given them to him a little while ago.

Sgt. Gavigan decided to have another officer, who PO Ogbewe could not identify, check if the keys matched the Honda Civic back at the parking lot at Father Capodanno and Sand Lane. The unidentified officer transmitted over the radio that the keys did open the Honda Civic and it was at that point that Sgt. Gavigan and PO Ogbewe apprehended § 87(2)(b) for § 87(2)(a) 160.50. PO Ogbewe handcuffed § 87(2)(b) who did not resist. PO Ogbewe never had to bring § 87(2)(b) onto the ground for handcuffing. Other officers, who PO Ogbewe could not recall, transported § 87(2)(b) to the 122nd Precinct stationhouse. When PO Ogbewe arrived at the stationhouse, § 87(2)(b) and § 87(2)(b) were already there. He could not recall who transported § 87(2)(b) and § 87(2)(b) to the stationhouse.

At that stationhouse, § 87(2)(b) and § 87(2)(b) were all questioned by Detectives about CIV1 but none of them gave any information. PO Ogbewe was not present for the interrogation. The Honda Civic was brought back to the stationhouse, vouchered, and searched. The firearm was recovered as were ski masks and burglary gloves. § 87(2)(a) 160.50

Subject Officer: SGT. WILLIAM GAVIGAN

- Sgt. Gavigan was § 87(2)(b) old at the time of the incident. He is a white man who § 87(2)(b) has blonde hair and blue eyes.
- Sgt. Gavigan worked between the hours of 11:05 p.m. on May 31, 2013, and 8:02 a.m. on the following day. He was the Patrol Supervisor, working with PO Sherwin Ogbewe, dressed in uniform, and driving in marked vehicle # 4103.

Memo Books

Sgt. Gavigan's memo book entries pertaining to this incident (enc. F-1 – F-3) state verbatim that at "3:50 a.m., 2 males 1 female stopped Sand Lane Father Capodanno Boulevard. At 3:55 a.m., other report prepared (no arrest). At 4:18 a.m., foot pursuit male with gun. At 5:30, 122 David, 2 perps to 122 Pct. in regards. At 6 a.m., 1 male stopped sand lane and dodi place. At 6:10 a.m., 1 male to 122 Pct."

CCRB Statement

Sgt. William Gavigan was interviewed at the CCRB on December 17, 2013 (enc. F-4 – F-5). § 87(2)(b)

On June 1, 2013, at around 4 a.m., at Sand Lane and Father Capodanno Boulevard, Sgt. Gavigan saw a Honda Civic and a BMW pull into a parking lot. The parking lot is closed after dusk and there is an unobstructed sign that says such at the entrance. As the officers drove from the opposite end of the parking lot to where the Honda and BMW stood, they saw two males exit the Honda and a male and female exit the BMW. One of the males from the sedan, who will heretofore be referred to as CIV1, noticed the police car, and immediately walked away. The sedan and the BMW were parked right across from each other, facing opposite directions. PO Ogbeweles parked the police vehicle right in the middle between the sedan and the BMW. There were a few other cars in the parking lot, but no other persons present.

When PO Ogbeweles and Sgt. Gavigan exited their police vehicle, the two males and one female, who the investigation determined to be § 87(2)(b) and § 87(2)(b) were standing at the rear of the BMW. The BMW's trunk and driver side door were open. PO Ogbeweles and Sgt. Gavigan informed the three civilians that the parking lot was closed. § 87(2)(b) and § 87(2)(b) were compliant and did not become agitated. After a few seconds of talking with the civilians, Sgt. Gavigan went to the sedan to investigate and see if there were any persons inside. The sedan was locked, but underneath the passenger seat, Sgt. Gavigan could see the butt of a gun, which held an extended magazine. He returned to where the civilians and PO Ogbeweles were standing. Sgt. Gavigan quickly peered into the BMW through the open trunk and driver's door, but did not go into the vehicle and perform a search. All three civilians denied knowing who CIV1 was. Sgt. Gavigan did not press the matter as he assumed the man just did not want a summons, and explained during his interview that people lie to him all the time. Additionally, he did not want to bring up the matter about the gun because he did not want the civilians to become suspicious and hide something. Neither Sgt. Gavigan nor PO Ogbeweles made physical contact with any civilian. They did not frisk or search any civilian. Neither the officers nor the civilians ever cursed at each other. The interaction was a calm one.

Sgt. Gavigan and PO Ogbeweles left the parking lot, and shortly thereafter, § 87(2)(b) and § 87(2)(b) left in the BMW. From about a football field away, Sgt. Gavigan and PO Ogbeweles sat inside their patrol vehicle to watch over the Honda. About ten to fifteen minutes later, CIV1 walked back to the parking lot, took off his sweater, and walked around the lot in a suspicious manner. He then opened up the passenger side door of the Honda, and got in. While CIV1 was entering the vehicle, Sgt. Gavigan drove up, but CIV1 immediately fled on foot. PO Ogbeweles exited the vehicle and pursued CIV1 on foot. Sgt. Gavigan drove the police vehicle around, parked it, and also pursued on foot. The officers however lost CIV1, and so Sgt. Gavigan called for backup. Additional sector patrols, Emergency Service Units, aviation, and canine units showed up at the scene. CIV1 was never discovered or identified.

Sgt. Gavigan did not have any more interaction with § 87(2)(b) and § 87(2)(b) but he stated that an unidentified sector patrol found them and brought them to the precinct stationhouse. § 87(2)(b) and § 87(2)(b) were both later released with summonses in lieu of arrest for disobeying a park sign. Sgt. Gavigan and PO Ogbeweles however found § 87(2)(b) sitting in the BMW at Sand Lane and Dodi Place. Gavigan recognized § 87(2)(b) from the prior stop. § 87(2)(b) complied with Sgt. Gavigan's request that he step out of the vehicle. He did not have identification and so was arrested for being in the parking lot after dark. Sgt. Gavigan and PO Ogbeweles frisked and searched § 87(2)(b) and found a set of car

keys with a Honda marking in his pocket. § 87(2)(b) was transported to the precinct stationhouse in a prisoner van, after which Sgt. Gavigan went back to Sand Lane and Father Capodanno Boulevard, and found that § 87(2)(b)'s keys opened up the sedan in the parking lot. The sedan is a Honda Civic, and it was brought back to the stationhouse, vouchered, and searched. Sgt. Gavigan could not remember there being anything else inside the Honda Civic besides the firearm and some ski masks. Because § 87(2)(b)'s keys opened up the Honda Civic, he was charged with § 87(2)(a) 160.50 after Sgt. Gavigan went back to the scene.

Other Officers Interviewed

The investigator interviewed PO Erik Miller, PO Marc Stoll, and Sgt. Michael Lazzaro, all of whom are of the 122nd Precinct, and PO Giovanni Cascio who is of Patrol Borough Staten Island's evidence collection team. PO Miller and PO Stoll responded to the incident, but neither of them interacted with any civilian. Sgt. Lazzaro did not recall ever interacting with § 87(2)(b) or § 87(2)(b) at the stationhouse. PO Cascio did not interact with any civilians during the incident, and his only role was to conduct a swab of the gun inside the Honda Civic at Father Cappodano Boulevard and Sand Lane, and collect fingerprints.

PO Miller and PO Stoll were interviewed because they were assigned to sector patrols that the SPRINT report revealed to have responded to the incident. PO Miller was assigned to Sector D and PO Stoll was assigned to Sector H. Sgt. Lazzaro was interviewed because in his capacity as the Anti-Crime Sergeant, he may have learned of or interacted with § 87(2)(b) when she was interviewed by plainclothes officers. PO Cascio was interviewed as his name appeared in the property vouchers related to the firearm.

NYPD Documents

SPRINT Report

This incident generated SPRINT number § 87(2)(b) (enc. M-4 – M-5) which began at 4:18 a.m. and concluded at 7:22 a.m. The report states that there was a foot pursuit at Father Capodanno Boulevard-Sand Lane-Doty Avenue. The perpetrator is described as a male black wearing a pink red shirt, dark jeans, and had close cut hair. He was wanted for firearm display, and was driving in a dark colored S5 vehicle, with Virginia license plate § 87(2)(b). Aviation was requested to the location.

The report revealed that 122nd Precinct Sector Patrol H and D, Lieutenant, and Sergeant responded to the location.

Roll Call

The 122nd Precinct's Tour 1 Roll Call (enc. N-1 – N-14) revealed that on June 1, 2013, PO Erik Miller was assigned to patrol sectors D, E, F, and G, and PO Marc Stoll was assigned to patrol sectors H, I, J, M and N.

Property Vouchers

A black 2013 Civic Honda four door sedan with Virginia license plate number § 87(2)(b) was vouchered as evidence. The vehicle was returned to registered owner, § 87(2)(b), on August 21, 2013.

Regarding § 87(2)(b)'s arrest (arrest no. § 87(2)(b)) the following property was vouchered: one black Llama .45 pistol, one round removed the pistol chamber, one magazine, nine rounds removed from the magazine, and a cell phone (enc. O-1 – O-7).

Management Information Systems Division (MISD) Documents

According to MISC, Det. Robert Campbell (tax no. 922061) of Detective Borough Staten Island ran a license check on § 87(2)(b) at 6:52 a.m. on June 1, 2013 (enc.).

Other Documents Requested

From the 122nd Precinct Detective Squad, the investigator requested the complaint follow-up informational report and the complaint follow-up report (jointly referred to as DD5) regarding the interrogation of § 87(2)(b) but the command responded saying that “no one by the name § 87(2)(b) was debriefed or interviewed by members of the 122 Squad. Could have been Anti-Crime, FIO, [or] FIO Assistant.” (enc. V-7)

Robbery Pattern Sheets were also requested from the 122nd Precinct Detective Squad, yielding negative results as well (enc. V-3).

Upon request the 122nd Precinct identified Sgt. Christopher Harrington and Sgt. Michael Lazzarra as the FIO and Anti-Crime Sergeant, respectively (enc. V-8).

Memo Books

Sgt. Lazzarra's memo books indicate that on the day of the incident, June 1, 2013, he was on his regular day off (enc. L-1 – L-2).

Arrest for Incident and Disposition

- **[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]**

Status of Civil Proceedings

- On September 22, 2014, the investigator inquired with the New York City Comptroller as to whether § 87(2)(b) or § 87(2)(b) filed a notice of claim with the City of New York regarding this incident. A response has not been received.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [illegible]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (enc. A-3).
- This is the first CCRB complaint with regards to § 87(2)(b) (enc. A-4).
- § 87(2)(b) has one other CCRB complaint § 87(2)(b)

Subject Officers CCRB History

- PO Sherwin Ogbeweles has been a member of the service for eight years and there are no substantiated CCRB allegations against him (enc. A-1).

- Sgt. William Gavigan has been a member of the service for seven years and there are no substantiated CCRB allegations against him (enc. A-2).

Conclusion

Identification of Subject Officer

Sgt. Gavigan and PO Ogbewe confirmed their interaction with § 87(2)(b) and § 87(2)(b).

Two officers, PO Miller and PO Stoll were interviewed because they responded to the incident, and may have been PO3 and PO4 who stopped § 87(2)(b) and § 87(2)(b) the second time. However, neither PO Miller nor PO Stoll interacted with any civilians during the incident. § 87(2)(g)

§ 87(2)(b). The subject officers were confined to within the 122nd Precinct stationhouse since § 87(2)(b) was never transported anywhere else before being released. The investigator's request for the 122nd Precinct Detective Squad's DD-5 regarding § 87(2)(b) interview of Anti-Crime supervisor Sgt. Lazzarra, and review of FIO Sgt. Harrington's memo books all yielded negative results. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

While § 87(2)(b) alleged that Sgt. Gavigan frisked and searched § 87(2)(b) herself did not. § 87(2)(g).

§ 87(2)(b) also alleged that he saw Sgt. Gavigan and PO Ogbewe throw § 87(2)(b) to the ground during the second encounter at Sand Lane and Dodi Place. § 87(2)(b) however did not make this allegation. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Force – At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewe pointed his gun at § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that when Sgt. Gavigan and PO Ogbewe approached them while they were in the parking lot, the latter was holding his gun with one hand, pointing it at the BMW. Neither § 87(2)(b) nor § 87(2)(b) described any officer they dealt with holding a gun during the incident.

Both Sgt. Gavigan and PO Ogbewe denied pointing their guns at any civilian, or even drawing their weapons.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unfounded**.

Allegation B: Discourtesy – At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that Sgt. Gavigan said derivations of the word “fuck” during the incident. § 87(2)(b) never made this allegation.

Sgt. Gavigan denied having ever used profanity during the incident and PO Ogbewele corroborated his statement.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as *unsubstantiated*.

Allegation C: Discourtesy – At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewele spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that PO Ogbewele also said derivations of the word “fuck” during the incident. § 87(2)(b) specifically denied PO Ogbewele making any profane statements. § 87(2)(b) did not make any discourtesy allegations against any officer.

PO Ogbewele denied using any profanity during the incident and Sgt. Gavigan corroborated his statement.

§ 87(2)(g) It is therefore recommended that **Allegation C** be closed as *unfounded*.

Allegation D: Abuse of Authority – At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan supervised the search of § 87(2)(b) vehicle.

All three civilians alleged that Sgt. Gavigan searched the BMW. § 87(2)(g) § 87(2)(b) stated that Sgt. Gavigan asked § 87(2)(b) to search the car, but could not remember hearing § 87(2)(b) responding to this request. § 87(2)(b) stated that the officers never asked permission to search his vehicle, and that he never consented to a search. § 87(2)(b) not only recalled Sgt. Gavigan requested permission to search the vehicle, but also recalled § 87(2)(b) granting permission.

Both Sgt. Gavigan and PO Ogbewele denied searching the BMW at the parking lot of Father Capodanno Boulevard and Sand Lane.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as *exonerated*.

Allegation E: Abuse of Authority – At Father Capodanno Boulevard and Sand Lane in Staten Island, PO Sherwin Ogbewele searched § 87(2)(b)

§ 87(2)(b) alleged that PO Ogbewele searched § 87(2)(b)'s person, feeling around his waistband and inside his front pants pockets. § 87(2)(b) also stated that PO Ogbewele searched § 87(2)(b). Although § 87(2)(b) described PO Ogbewele reaching into § 87(2)(b)'s pockets to retrieve

§ 87(2)(b)'s driver's license, § 87(2)(b) § 87(2)(g) stating that he himself produced his driver's license upon request. § 87(2)(b) never described any civilian being searched during this first part of the incident. She stated that while she was positioned by the driver side door and § 87(2)(b) was by the front passenger side door, § 87(2)(b) was at the back, behind the BMW.

PO Ogbewe denied making any physical contact with the civilians, specifying that he never searched § 87(2)(b) Sgt. Gavigan corroborated this statement.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as *unsubstantiated*.

Allegation F: Force – At Father Capodanno Boulevard and Sand Lane in Staten Island, Sgt. William Gavigan hit § 87(2)(b) face against a car.

Allegation G: At Father Capodanno Boulevard and Sand Lane in Staten Island, Abuse of Authority – Sgt. William Gavigan searched § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Gavigan became annoyed with being asked questions and therefore used physical force against him, as well as went into his pockets. Both § 87(2)(b) and § 87(2)(b) did not make these allegations, with the former stating that § 87(2)(b) was not searched during the incident. § 87(2)(b) specified that although the officers did acquire their driver's licenses, the officers never reached into anyone's pockets for them; they were voluntarily given.

Both PO Ogbewe and Sgt. Gavigan denied making any physical contact with the civilians, adding that no civilian was ever searched.

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as *unfounded*.

Allegation H: Abuse of Authority – At Sand Lane and Dodi Place in Staten Island, Sgt. William Gavigan supervised the frisk of § 87(2)(b)

It is undisputed that when Sgt. Gavigan and PO Ogbewe found § 87(2)(b) a second time, they frisked him. This second encounter came after Sgt. Gavigan had spotted the butt of a gun from beneath the passenger seat of the Honda Civic, and had lost the fourth unidentified civilian during a foot pursuit.

Sgt. Gavigan stated that because § 87(2)(b) did not have identification on him, the latter was arrested in lieu of a summons for trespassing during this second encounter. Both he and PO Ogbewe frisked § 87(2)(b)

§ 87(2)(g)

PO Ogbewe described observing a large bulge in § 87(2)(b)'s front pants pocket which he believed could only have been a weapon. Therefore, he frisked that pocket, and only that pocket.

To stop and frisk a civilian, an officer must have reasonable suspicion that the civilian was involved in a felony or misdemeanor. *People v. Gerard*, 94 A.D.3d 592 (2012) (enc. AB-1 – AB-2)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

, it is recommended that **Allegation H** be closed as *exonerated*.

Allegation I: Abuse of Authority – At Sand Lane and Dodi Place in Staten Island, Sgt. William Gavigan supervised the search of § 87(2)(b)

Allegation J: Abuse of Authority – At Sand Lane and Dodi Place in Staten Island, PO Ogbewele searched § 87(2)(b)

§ 87(2)(b) alleged that during his second encounter with the officers, he was searched by both Sgt. Gavigan and PO Ogbewele.

§ 87(2)(b) and § 87(2)(b) all consistently described that at the beginning of the incident at Father Capodanno Boulevard and Sand Lane, Sgt. Gavigan had run their licenses.

Sgt. Gavigan however stated that it was because § 87(2)(b) did not have identification on him that he was arrested in lieu of a summons for trespassing during the second encounter. Sgt. Gavigan also stated that both he and PO Ogbewele searched § 87(2)(b)'s pants pockets, recovering car keys bearing the 'Honda' insignia. § 87(2)(b) was first transported to the stationhouse before Sgt. Gavigan himself went back to the parking lot at Father Capodanno Boulevard and Sand Lane, and confirmed that the keys matched the Honda Civic.

§ 87(2)(g)

PO Ogbewele observed a large bulge in § 87(2)(b)'s front pants pocket which he believed could only have been a weapon. He frisked that pocket, and only that pocket, and felt a hard object that was not a weapon. Sgt. Gavigan then asked § 87(2)(b) to take out the pocket's contents, revealing a wallet, and Honda car keys. Only after an unidentified officer checked that the car keys matched the Honda Civic parked at Father Capodanno Boulevard and Sand Lane was § 87(2)(b) deemed under arrest for criminal possession of weapon and trespassing. PO Ogbewele also corroborated § 87(2)(b)'s statements that at the parking lot in the beginning, Sgt. Gavigan had performed checks of § 87(2)(b) and § 87(2)(b) licenses.

§ 87(2)(b) was ultimately arrested for § 87(2)(a) 160.50 from this incident.

"Once [a] limited intrusion fails to reveal a weapon and the basis for the officer's fear for his safety has therefore abated, the search must stop." *People v. Rodriguez*, 856 N.Y.S.2d 502 (2008) (enc. AC-1 – AC-5)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. Consequently, it is recommended that **Allegations I and J** be closed as *substantiated*.

Allegation K: Abuse of Authority – At Olympia Boulevard and Sand Lane in Staten Island, officers stopped § 87(2)(b) and § 87(2)(b)

Allegation L: Abuse of Authority – At Olympia Boulevard and Sand Lane in Staten Island, officers frisked § 87(2)(b) and § 87(2)(b)

Allegation M: Abuse of Authority – At Olympia Boulevard and Sand Lane in Staten Island, officers searched § 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) were brought to the 122nd Precinct stationhouse, § 87(2)(g)

The SPRINT report reveals that a radio call was made stating verbatim “perpetrator wanted for firearm display.” The perpetrator was described as driving a dark colored BMW with an out of state license plate, § 87(2)(b) § 87(2)(b) was driving the BMW, and had just exited it with § 87(2)(b) when two uniformed officers stopped them.

§ 87(2)(g)

Consequently, it is recommended that **Allegations K, L, and M** be closed as *exonerated*.

Allegation N: Abuse of Authority – Inside the 122nd Precinct Stationhouse, officers spoke rudely to § 87(2)(b)

§ 87(2)(g)

The investigator requested the DD-5 regarding § 87(2)(b)'s interview, but the 122nd Precinct Detective Squad stated that there was no record of § 87(2)(b) being debriefed or interviewed. The 122nd Precinct Detective Squad suggested that it may have been the 122nd Precinct's Anti-Crime team or FIO who may have conducted the interview.

The investigator interviewed Sgt. Lazzarra, who was the Anti-Crime Sergeant on the day of the incident. Sgt. Lazzarra had no recollection of the incident, and did not recognize § 87(2)(b) or § 87(2)(b) after being shown photographs of them.

Sgt. Harrington, assigned as the Field Intelligence Officer, provided his memo books for the day of the incident, which indicate that he was on his regular day off on June 1, 2013.

§ 87(2)(g)

. Consequently it is recommended that **Allegation N** be closed as *officer(s) unidentified*

Team: 3

Investigator: _____ Yanjiao Chen _____
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date